

Netflix Terms of Use

Welcome to Netflix! Netflix provides a service that allows users to access entertainment content ("Netflix content") over the Internet on certain Internet-connected TVs, computers and other devices ("Netflix supported devices").

These Terms of Use govern your use of our service. As used in these Terms of Use, "Netflix service", "our service" or "the service" means the service provided by Netflix for discovering and accessing Netflix content. This includes all personalization, features and functionalities, recommendations and reviews, our websites, applications and user interfaces, as well as all content and software associated with our service.

1. The Netflix Service

1.1. Access to the Netflix Service. To use the Netflix service you must have Internet access and a Netflix supported device. Some features, content, or offerings may be available at no cost and may be accessed without creating an account or providing a Payment Method, while other options require you to create a Netflix account or purchase a subscription, subject to the subscription terms outlined below. You may also be able to use the Netflix service as a profile user under an Account Owner's subscription, provided you are part of the same household, or, in countries where this feature is available, as an Extra Member if you do not live in the same household as the Account Owner. As used in these Terms, "Account Owner" means the user who created the Netflix account and whose Payment Method is charged for the subscription.

1.2. Age Limitation. You must be at least 18 years of age, or the age of majority in your province, territory or country, to create a Netflix account or, where available, to become an Extra Member. Minors may only use the service under the supervision of an adult.

1.3. Offers. We may from time to time provide special promotional offers (such as sweepstakes, discounts and other incentives), plans or subscriptions ("Offers"). Offer eligibility is determined by Netflix at its sole discretion and we reserve the right to revoke an Offer and put your account on hold in the event that we determine you are not eligible. Members of households with an existing or recent Netflix account may not be eligible for certain introductory Offers. We may use information such as device ID, method of payment or your contact information to determine Offer eligibility. The eligibility requirements and other limitations and conditions will be disclosed when you sign-up for

the Offer or in other communications made available to you.

1.4. Account Sharing. The Netflix service and any content accessed through it are for your personal, non-commercial use only and may not be shared with anyone outside of your household, unless, in countries where this feature is available, you purchased an Extra Member Account.

1.5. Access Limitations. You may access the Netflix content primarily within the country in which you have established your account and only in geographic locations where we offer our service and have licensed such content. The content that may be available will vary by geographic location, may be limited by law or by the rights that our third-party content providers grant to us, and will change from time to time. The number of devices on which you may simultaneously watch depends on your chosen subscription plan and is specified on the "Account" page.

1.6. Availability and Testing. The Netflix service, including the Netflix content, is regularly updated. As a result, we do not guarantee that particular content will be available on the Netflix service at any given time. While we strive to provide a consistent and high-quality experience, some content or features may be temporarily unavailable due to demand, technical constraints, or system maintenance. In addition, we continually test various aspects of our service, including our websites, user interfaces and promotional features. You can turn off test participation at any time by visiting the "Account" page and changing the "Test participation" settings.

1.7. Downloading Content. Depending on the subscription plan, some Netflix content may be available for temporary download and offline viewing on certain supported devices ("Offline Titles"). Limitations apply, including restrictions on the number of Offline Titles per account, the maximum number of devices that can contain Offline Titles, the time period within which you will need to begin viewing Offline Titles and how long the Offline Titles will remain accessible. Some Offline Titles may not be playable in certain countries and if you go online in a country where you would not be able to stream that Offline Title, the Offline Title will not be playable while you are in that country.

1.8. Usage Rights and Restrictions. Subject to these Terms and only to the extent you are expressly authorised, we grant you a limited, non-exclusive, non-transferable right to access the Netflix service. Except for the foregoing, no right, title or interest shall be transferred to you. You agree to use the Netflix service, including all features and functionalities associated therewith, in accordance with all applicable laws, rules and regulations, or other restrictions on use of the service or content therein. Unless otherwise explicitly authorized, you agree not to:

- (i) use the service for commercial purposes or public performances;
- (ii) archive, reproduce, distribute, modify, display, perform, publish, license, create derivative works from, offer for sale, or use content and information contained on or obtained from through the Netflix service;
- (iii) circumvent, remove, alter, deactivate, degrade, block, obscure or thwart any of the content protections or other elements of the Netflix service, including the graphical user interface, any advertising or advertising features, copyright notices, and trademarks;
- (iv) use any robot, spider, scraper or other automated means to access the Netflix service;
- (v) decompile, reverse engineer or disassemble any software or other products or processes accessible through the Netflix service;
- (vi) insert any code or product or manipulate the content of the Netflix service in any way;
- (vii) use any data mining, data gathering or extraction method;
- (viii) upload, post, e-mail or otherwise send or transmit any material designed to interrupt, destroy or limit the functionality of any computer software or hardware or telecommunications equipment associated with the Netflix service, including any software viruses or any other computer code, files or programs; or
- (ix) engage in any of the foregoing in connection with the use, creation, development, modification, prompting, fine-tuning, training, testing, benchmarking or validation of any machine learning tool, model, system, algorithm, product or other technology.

We may terminate or restrict your use of our service if you violate these Terms of Use or are engaged in illegal or fraudulent use of the service.

1.9. Viewing Experience and Technical Requirements. The quality of the display of the Netflix content may vary from device to device, and may be affected by a variety of factors, such as your location, the bandwidth available through and/or speed of your Internet connection. HD, Ultra HD and HDR availability is subject to your Internet service and device capabilities. Spatial audio quality is subject to your device capabilities. Not all content is available in spatial audio or in all formats, such as HD, Ultra HD or HDR and not all subscription plans allow you to receive content in all formats. The minimum connection speed for HD video quality (defined as a resolution of 720p or higher) is 3.0 Mbps per stream; however, we recommend a faster connection for improved video quality. A connection speed of at least 5.0 Mbps per stream is recommended to receive Full HD video quality (defined as a resolution of 1080p or higher). A connection speed of at least 15.0 Mbps per stream is recommended to receive Ultra HD video quality (defined as a resolution of 4K or higher). You are responsible for all Internet access charges. Please check with your Internet provider for information on possible Internet data usage charges. The time it takes to begin watching Netflix content will vary based on a number of factors, including your location, available bandwidth at the time, the content you have selected and the configuration of your Netflix supported device.

1.10. Netflix Software and Updates. The Netflix software is developed by, or for, Netflix and may solely be used for authorized access to Netflix content through Netflix supported devices. This software may vary by device and medium, and functionalities and features may also differ between devices. You acknowledge that the use of the service may require third party software that is subject to third party licenses. You agree that you may automatically receive updated versions of the Netflix software and related third-party software.

1.11. Interactive Features. We may offer certain Interactive Features as part of the service. “Interactive Features” means any real-time or near-real-time functionality that enables users to participate in or interact with programming or other users, for example live chat, polls, voting, multiplayer gaming, game shows, and live voting. Use of Interactive Features is subject to these Terms of Use, our **Community Guidelines** and, where posted, the official rules for the specific event. We may take interim measures (for example, suspend voting, disqualify entries or void results) to protect voting integrity, safety or legal compliance. We may suspend or terminate access to any Interactive Feature immediately if you breach these Terms of Use, our policies, or if your use poses an immediate safety or legal risk.

2. Subscription Terms

2.1. Billing Cycle and Payment Terms. Your Netflix subscription will continue until terminated. To purchase a subscription, you will need to add one or more Payment Methods to your account. "Payment Method" means a current, valid, accepted method of payment, as may be updated from time to time, and which may include payment through your account with a third party. Unless you cancel your subscription before your billing date, you authorize us to charge the subscription fee for the next billing cycle to your Payment Method (see "Cancellation" below). The subscription fee and any other charges you may incur in connection with your use of the service, such as taxes and possible transaction fees, will be charged to your Payment Method on the specific payment date indicated on the "Account" page. The length of your billing cycle will depend on the type of subscription plan that you choose when you signed-up for the service. In some cases your payment date may change, for example if your Payment Method has not successfully settled, when you change your subscription plan or if your paid subscription began on a day not contained in a given month. You can see your next payment date on the "Account" page. We may authorize your Payment Method to verify it and to cover upcoming charges through various methods, including a pre-authorization of up to one month of service as soon as you register for a subscription. If you signed up for Netflix using your account with a third party as a Payment Method, you can find the billing information about your Netflix subscription by visiting your account with the applicable third party.

2.2. Payment Methods. You authorize us to charge any Payment Method associated with your account in case your primary Payment Method is declined or no longer available to us for payment of your subscription fee. You remain responsible for any uncollected amounts. If a payment is not successfully settled, due to expiration, insufficient funds, or otherwise, and you do not cancel your subscription, we may suspend your access to the service until we have successfully charged a valid Payment Method. For some Payment Methods, the issuer may charge you certain fees, such as foreign transaction fees or other fees relating to the processing of your Payment Method. Local tax charges may vary depending on the Payment Method used. Check with your Payment Method service provider for details.

2.3. Updating your Payment Methods. You can update your Payment Methods through the "Account" page. We may also update your Payment Methods using information provided by the payment service providers. Following any update, you authorize us to continue to charge the applicable Payment Method(s).

2.4. Advertisements and Commercial Content. While our subscription plans are designed to provide an experience without commercial interruptions, there may be some occasions when you may see advertisements — for example, during certain live or special events (including replays), as part of linear programming, or where required by streaming rights or other legal or contractual obligations. In addition, our service may contain limited commercial content, such as branded content or sponsorship messaging, promotions for Netflix content, or information about other Netflix products or services. Netflix does not endorse or sponsor any advertised third party products or services and any interactions with advertisers, including through engagement with interactive advertisements, are at your own option and risk.

2.5. Subscriptions Obtained Through Third Parties. Some subscriptions are offered by third parties in conjunction with the provision of their own products and services. We are not responsible for the products and services provided by such third parties. In addition, some of these subscription plans may have differing conditions and limitations, which will be disclosed prior to your sign-up or in other communications made available to you.

2.6. Cancellation. You can cancel your Netflix subscription at any time. To cancel, go to the "Account" page and follow the instructions for cancellation. The cancellation will take effect at the end of the billing period. To the extent permitted by the applicable law, payments are non-refundable and we do not provide refunds or credits for any partial subscription periods or unused Netflix content. You can see when your account will close on the "Account" page . If you signed up for Netflix using your account with a third party as a Payment Method and wish to cancel your Netflix subscription, you may need to do so through such third party, for example by visiting your account with the applicable third party and turning off auto-renew, or unsubscribing from the Netflix service through that third party.

2.7. Changes to the Price and Subscription Plans. We may change our subscription plans and the price of our service from time to time. We will notify you at least one month before any price changes or changes to your subscription plan will become effective. If you do not wish to accept the price change or change to your subscription plan, you can cancel your subscription before the change takes effect.

3. Extra Members

3.1. Creation of an Extra Member Account. In countries where this feature is available and where permitted by the Account Owner's subscription plan, the Account Owner may purchase an Extra Member account, authorising a person outside of the Account Owner's household (the "Extra Member") to access the Netflix service under the Account Owner's subscription and subject to these Terms of Use. The subscription fees related to the Extra Member account will be charged to the Account Owner's Payment Method. Extra Members may activate their Extra Member account only in the country where the Account Owner created their account.

3.2. Cancellation or Changing Beneficiary of the Extra Member Account. An Extra Member may cancel their account at any time; cancellation by the Extra Member will result in the Extra Member's immediate loss of access to the Netflix service. The Account Owner may also, in their sole discretion and at any time, remove the Extra Member feature from their subscription or change its beneficiary. If the Account Owner removes the Extra Member feature from their subscription, the Extra Member will retain access to the Netflix service until the end of the Account Owner's billing period. If the Account Owner changes the beneficiary of the Extra Member account, the previous beneficiary's access to the Netflix service will end immediately. An Extra Member who wishes to continue using the service, can upgrade their Extra Member account to a subscription via the "Account" page.

4. Account Access.

You are responsible for any activity that occurs through the Netflix account. By allowing others to access the account (which includes access to information on viewing activity for the account), you agree that such individuals are acting on your behalf and that you are bound by any changes that they may make to the account, including changes to subscription plans. To help maintain control over the account and to prevent any unauthorized users from accessing the account, you should maintain control over the devices that are used to access the service and not reveal the login credentials or details of the Payment Method associated with the account to anyone. You agree to provide and maintain accurate information relating to your account, including valid contact information so we can send you account related notices. We can terminate your account or place your account on hold in order to protect you, Netflix or our partners from identity theft or other fraudulent activity.

5. Warranties and Limitations on Liability.

The Netflix service is provided "as is" and without warranty or condition. In particular, our service may not be uninterrupted or error-free. You waive all special, indirect and consequential damages against us. These terms will not limit any non-waivable warranties or consumer protection rights that you may be entitled to under the mandatory laws of your country of residence.

6. Class Action Waiver.

WHERE PERMITTED UNDER THE APPLICABLE LAW, YOU AND NETFLIX AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE PROCEEDING. Further, where permitted under the applicable law, unless both you and Netflix agree otherwise, the court may not consolidate more than one person's claims with your claims, and may not otherwise preside over any form of a representative or class proceeding.

7. Miscellaneous

7.1. Governing Law. These Terms of Use shall be governed by and construed in accordance with the laws of the Republic of Singapore. These terms will not limit any consumer protection rights that you may be entitled to under the mandatory laws of your country of residence.

7.2. Unsolicited Materials. Netflix does not accept unsolicited materials or ideas for Netflix content and is not responsible for the similarity of any of its content or programming in any media to materials or ideas transmitted to Netflix.

7.3. Feedback. Netflix is free to use any comments, information, ideas, concepts, reviews, or techniques or any other material contained in any communication you may send to us ("Feedback"), including responses to questionnaires or through postings to the Netflix service, including our websites and user interfaces, worldwide and in perpetuity without further compensation, acknowledgement or payment to you for any purpose whatsoever including developing, manufacturing and marketing products and creating, modifying or improving the Netflix service. In addition, you agree not to enforce any "moral rights" in and to the Feedback, to the extent permitted by applicable law.

7.4. Customer Support. To find more information about our service and its features or if you need assistance with your account, please visit the Netflix Help Center, which is accessible through netflix.com. In certain instances, Customer Service may best be able to assist you by using a remote access support tool through which we have full access to your computer. If you do not want us to have this access, you should not consent to support through the remote access tool, and we will assist you through other means. In the event of any conflict between these Terms of Use and information provided by Customer Support or other portions of our websites, these Terms of Use will control.

7.5. Survival. If any provision or provisions of these Terms of Use shall be held to be invalid, illegal, or unenforceable, the validity, legality and enforceability of the remaining provisions shall remain in full force and effect.

7.6. Changes to these Terms and Assignment. We may, from time to time, change these Terms of Use. In case of material changes we will notify you at least one month before such changes apply to you. If you do not wish to accept the changes, you can terminate your account before they take effect. We may assign or transfer our agreement with you including our associated rights and obligations at any time and you agree to cooperate with us in connection with such an assignment or transfer.

7.7. Events Beyond our Reasonable Control. The Netflix service and/or some of the Netflix content may not be available at any time as a result of events beyond our reasonable control, including: (i) power or server outages; (ii) acts or failures of any kind by third parties such as network providers; (iii) war, riots, strikes, or social unrest; and/or (iv) any other events or factors beyond our reasonable control. While we will make reasonable efforts to notify you in advance, to the extent permitted by applicable law, we will not be held liable should such events occur.

7.8. Electronic Communications. We will send you information relating to your account (e.g. payment authorizations, invoices, changes in contact details or Payment Method, confirmation messages, notices) in electronic form only.